

		Plaintiff is granted 20 days leave to amend. The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
112	James vs. Subaru of America, Inc., 25-01465353	<i>No tentative posted.</i>
113	Gutierrez vs. Corral, 23-01328797	Plaintiff Mireya Gutierrez moves for an order appointing a referee to effectuate the partition by sale ordered in the Judgment entered on March 3, 2026 in favor of plaintiff. Code of Civil Procedure section 873.010(a) provides: "The court shall appoint a referee to divide or sell the property as ordered by the court." An appointed referee must be disinterested, impartial, and not a party to or a participant in the action. (Code Civ. Proc., § 874.315.) On March 3, 2026, the Court entered Judgment in favor of plaintiff, ordering that the subject property shall be sold pursuant to Code of Civil Procedure section 872.820 and the net proceeds of the sale shall be divided equally between plaintiff and defendant. The Court finds that appointment of a referee to sell the property as ordered is warranted. Thus, the Motion for Appointment of Referee is GRANTED. The parties are ordered to meet and confer on the selection of an impartial and disinterested referee. If the parties reach an agreement on a referee, they shall file a joint stipulation that the Court appoint that person as the referee within 15 days of the date of this order. If an agreement cannot be reached, each party shall submit up to three nominees for appointment as referee within 15 days of the date of this order. Upon receipt of the other party's nominees for appointment, the other party may file any objections to the nominees within 10 days. The Court will then appoint a referee after consideration of the parties' nominees and/or objections. <i>Moving party to give notice.</i>